

WHAT IS MARITAL PROPERTY IN ILLINOIS?

*THIS IS NOT LEGAL ADVICE AND I AM NOT YOUR LAWYER
HIRE AN ATTORNEY IF YOU HAVE LEGAL QUESTIONS.*

In an Illinois Divorce, both parties are entitled to a full disclosure of all assets. Each asset is then classified as “Marital” or “Non-Marital”. Statute requires that all Marital Property be distributed in “just proportions” and that each party is assigned its own non-marital property. See 750 ILCS 5/503(d).

The first step is to determine which assets are “Marital”:

When was the property acquired?

During Marriage

*Before Marriage
Or After Dissolution*

**PRESUMED TO BE
MARITAL PROPERTY**

**PRESUMED TO BE
NON-MARITAL PROPERTY**

Does a statutory exception apply?

- “property acquired by gift, legacy or decent” 750 ILCS 5/503(a)(1)
- “property acquired in exchange for property acquired before the marriage” 503(a)(2)
- “property excluded by valid agreement of the parties” (i.e., prenup or postnup) 503(a)(4)
- “income from property acquired by a method listed in paragraphs (1) through (7)” 503(a)(8)

See 750 ILCS 5/504 for a Full List and Meet with an Attorney to better understand the complexities.

YES

**Was the property co-mingled
with or treated as marital
property? (“Transmutation”)**

YES

NO

MARITAL PROPERTY

NON-MARITAL PROPERTY

***Divided Between the Parties
(in “Just Proportions”)***

***Assigned to Each Party
(individually)***